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Case Number: 24BBCV00127 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION FOR LEAVE TO AMEND ANSWER

Hearing Date: 7/10/26

CASE NO./NAME: 24BBCV00127 Wilson v. Burbank-Glendale-Pasadena Airport Authority

Moving Party: Defendant Burbank-Glendale-Pasadena Airport Authority

Responding Party: Opposed

Notice: Sufficient

Ruling: GRANT

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a personal injury case. On January 16, 2024, plaintiff Annalisa Wilson (Plaintiff) filed the operative Complaint asserting a single cause of action for Dangerous Condition of Public Property pursuant to Government Code sections 815.2

and 835 against defendants Burbank-Glendale-Pasadena Airport Authority (Defendant), City of Burbank, County of Los Angeles, State of California, California Department of Transportation, and DOES 1 to 50, inclusive. On September 3, 2024, Plaintiff dismissed City of Burbank from the action. On September 13, 2024, Plaintiff dismissed State of California, California Department of Transportation, and County of Los Angeles from the action. Plaintiff maintains the action only against Defendant.

Plaintiff alleges she sustained injuries while walking at or near a sidewalk from Terminal B of the Hollywood Burbank Airport. Defendant filed its Answer on September 26, 2024.

On March 27, 2026, Defendant filed the instant motion seeking to amend their answer. On June 29, 2026, Plaintiff filed an Opposition. On July 2, 2026, Defendant filed a Reply.

LEGAL STANDARD

Code of Civ. Proc. § 473(a)(1), provides, in relevant part: “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.”

Under California Rules of Court Rule, Rule 3.1324, subdivision (a), a motion to amend a pleading shall:

- (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and
- (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

In addition, under California Rules of Court, Rule 3.1324, subdivision (b), a separate declaration must accompany the motion and must specify:

- (1) the effect of the amendment;
- (2) why the amendment is necessary and proper;
- (3) when the facts giving rise to the amended allegations were discovered; and
- (4) the reasons why the request for amendment was not made earlier.

The Court’s discretion to grant leave “should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.) Ordinarily, the Court will not consider the validity of the proposed amended pleading in ruling on a motion for leave

since grounds for a demurrer or motion to strike are premature. The Court, however, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See *California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390).)

DISCUSSION

Defendant has provided the Court with a proposed amended Answer adding two affirmative defenses. (See McGarry Decl., Exh. J.) Defendant has specified and stated the two affirmative defenses to be added to the pleading. (Mot., p. 8; McGarry Decl., Exh. J.)

Defendant argues that the proposed affirmative defense under Government Code, section 830.8 would apply to Plaintiff's allegations that Defendant failed to warn of the allegedly dangerous condition as public entities are immune from liability for injuries caused by a lack of traffic signs or warnings. (Mot., pp. 9-10.) Defendant argues that proposed affirmative defense under Government Code, section 831 may be applicable because public entities are immune from liability for injuries caused by the effects of weather. (Mot., 10.)

Plaintiff argues that Defendant's delay in filing the instant motion is inexcusable. (Opp., p. 3.) Plaintiff argues that Defendant was aware of the facts underpinning this amendment prior to discovery and amendment at this stage would be unfairly prejudicial as Plaintiff has framed their case around the original answer and may be required to expend additional resources to address the amendment. (Ibid.)

In reply, Defendant argues that Plaintiff has identified no concrete prejudice arising from the proposed amendment and merely speculates that additional resources might be required. (Reply, p. 2.) Moreover, Defendant argues that the facts underpinning the amendment were revealed during discovery and Defendant acted diligently in filing the instant motion after the relevant facts had developed. (Ibid.)

Defendant provides the Court with a separate declaration stating the effect of the amendment, why it is necessary, when the facts giving rise to the amendment were discovered, and why amendment was not made earlier. Defendant has declared that the Answer seeks to add two immunities that may apply under the circumstances. (McGarry Decl., ¶ 9.) Defendant declares that discovery provided facts which may support additional affirmative defenses. (Ibid.) Defendant alleges that Plaintiff provided inconsistent narratives concerning the nature and location of her fall, provided varying accounts as to whether she fell while descending from a curb, walking in a crosswalk, or while ascending onto a curb. (Ibid.) Defendant further alleges that Plaintiff did not mention the weather or its alleged role in causing her fall in her operative Complaint. (Ibid.) The facts underpinning the amendment were discovered following Plaintiff's October 2025 deposition and December 2025 independent medical examination, which is why amendment to add the proposed affirmative defenses was not made earlier. (Ibid.)

Here, Plaintiff will suffer no prejudice due to Defendant's amended Answer. Although Plaintiff argues that Defendant substantially delayed filing the instant motion to amend their answer, Defendant filed the instant motion in March of 2026, three months after discovering the facts which support it. (McGarry Decl., ¶ 9.) Moreover, any additional discovery required of Plaintiff would not be substantial as they allege to have been aware of the facts underlying the amendment from the inception of the case. (Hakim Decl., ¶ 6.)

Plaintiff relies on *P & D Consultants, Inc.*, which held that the trial court did not err in denying leave to amend where plaintiff waited until after the trial readiness conference to attempt amending the complaint and offered no reason for the substantial delay. (*P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332.) However, the instant case concerns an amended reply, which is substantially dissimilar from an amended complaint proposed after the trial readiness conference. Moreover, Defendant's motion is made well in advance of trial and Defendant has provided an explanation for the delay, unlike the amending party in *P & D Consultants, Inc.*

Additionally, Defendant conferred with Plaintiff to discuss proposed affirmative defenses to be added to amended Answer on February 10, 2026. (McGarry Decl., ¶ 10.) Plaintiff was put on notice.

Accordingly, Defendant satisfied the statutory requirements for leave to amend pleading.

CONCLUSION AND ORDER

Defendant Burbank-Glendale-Pasadena Airport Authority's motion for leave to amend their Answer is granted. Defendant has 20 days from today to file an amended Answer.

Defendant shall provide notice of this order.

Hon. Victor Avila

Judge of the Superior Court